

2.

CASE #	CASE NAME	HEARING NAME
CVRI2401966	OLIVA VS INLAND EMPIRE UTILITIES AGENCY	MOTION TO CONTINUE TRIAL READINESS CONFERENCE AND TRIAL

Tentative Ruling:

The Court DENIES the Motion to Continue. The evidence does not establish good cause for a continuance. (Rule 3.1332(c).) Absent a showing of diligence, the failure to complete discovery or other trial preparation does not constitute good cause. (Rule 3.1332(c)(6).)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402667	AGUIRRE VS ARTEAGA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

The Court GRANTS Defendant/Plaintiff, Jaime Francisco Arteaga, Jr.'s Request for Judicial Notice. The Court GRANTS summary adjudication of Arteaga's partition action, and the 9th cause of action for partition in Aguirre's FAC, in favor of Arteaga and against Aguirre.

A co-owner of real or personal property may bring an action for partition to sever the unity of possession." (*Schwartz v. Shapiro* (1964) 229 Cal.App.2d 238, 257; *LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) Partition changes the rights of cotenants from common possession of the entire property into individual rights of exclusive possession of some portion of the property or to sale proceeds of the property for each co-tenant. (*Dabney v. Dabney* (2002) 104 Cal.App.4th 379.)

Partition is an equitable remedy that is governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) In an action for partition, the court determines the interests of the parties, and whether the plaintiff has the right to partition. (CCP §§ 872.610, 872.710.) "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (CCP § 872.720(a).) If demanded, a co-owner is entitled to partition as an absolute right. (*Williams v. Williams* (1967) 255 Cal. App. 2d 648, 651.)

There are three methods of partition: (1) physical division in kind of the property (CCP § 872.810); (2) sale of the property (CCP § 872.820); and (3) division by appraisal. In lieu of dividing the property among the parties, the court shall order the